

24LBCV02375 24LBCV02375

County: los-angeles

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Case Number: 24LBCV02375 Hearing Date: August 19, 2026 Dept: 25

Motion: Defendant Pegah Panirian, DPM's Motion for Summary Judgment

Moving Party: Defendant Pegah Panirian, DPM ("Defendant")

Responding Party: Plaintiff Kalala Satele, individually and as successor in interest ("Plaintiff")

Tentative Ruling

First Cause of Action – Medical Malpractice

"The elements of a cause of action for medical malpractice are: (1) a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2) a breach of the duty; (3) a proximate causal connection between the negligent conduct and the injury; and (4) resulting loss or damage." (Lattimore v. Dickey (2015) 239 Cal.App.4th 959, 968.)

"Whether the standard of care in the community has been breached presents the basic issue in a malpractice action and can only be proved by opinion testimony unless the medical question is within the common knowledge of laypersons." (Jambazian v.

Borden (1994) 25 Cal.App.4th 836, 844.) "When a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment unless the plaintiff

comes forward with conflicting expert evidence." (Munro v. Regents of University of California (1989) 215 Cal.App.3d 977, 984-985.)

First, Defendant provides the allegations brought against Defendant and explains the qualifications of Defendant's expert, Andrew R. Rothstein, D.P.M. (Rothstein Decl., ¶¶ 1-8.) Defendant contends that the declaration of Andrew R. Rothstein, D.P.M., establishes that Defendant's care and treatment of Decedent was appropriate and well within the standard of care. (Defendant's Separate Statement of Undisputed Material Facts ("DSSUMF") Nos. 1-11.) Defendant also states that no act or omission on the part of the moving defendant caused or contributed to Decedent's demise. (DSSUMF Nos. 12-14.)

The declaration of Andrew R. Rothstein, D.P.M., is sufficient for Defendant to meet the Defendant's moving burden on summary judgment. (DSSUMF Nos. 1-14.)

Plaintiff has filed a notice of non-opposition to the instant motion.

Defendant has met the initial burden to show that Defendant is entitled to judgment as a matter of law as to the first cause of action.

Second Cause of Action – Wrongful Death based on Medical Malpractice (CCP § 377.60)

"A cause of action for wrongful death is ... a statutory claim. Its purpose is to compensate specified persons—heirs—for the loss of companionship and for other losses suffered as a result of a decedent's death. The elements of the cause of action for wrongful death are the tort (negligence or other wrongful act), the resulting death, and the damages, consisting of the pecuniary loss suffered by the heirs." (Lattimore v. Dickey (2015) 239 Cal.App.4th 959, 968 [cleaned up; internal citations omitted]). As noted above, Defendant asserts that no act or omission on the part of the moving defendant caused or contributed to Decedent's alleged injuries and damages and death. (DSSUMF Nos. 12-14.)

Defendant has met the initial burden to show Defendant is entitled to judgment as a matter of law as to the second cause of action.

Again, no opposition has been filed and Plaintiff has filed a notice of non-opposition.

Tentative Ruling

Defendant Pegah Panirian, DPM's Motion for Summary Judgment is GRANTED.